

OFFICE OF THE SECRETARY

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October 16, 2019

The Honorable John Fisher
Judge of the Superior Court
County of Los Angeles
14400 Erwin Street Mall
Van Nuys, CA 91401

Re: Oscar Oswaldo Figueroa
CDCR No: T43011
Case No: LA037158
Date of Sentence: February 26, 2002

Dear Honorable John Fisher:

The purpose of this letter is to provide the court with the authority to resentence inmate Figueroa, T43011 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

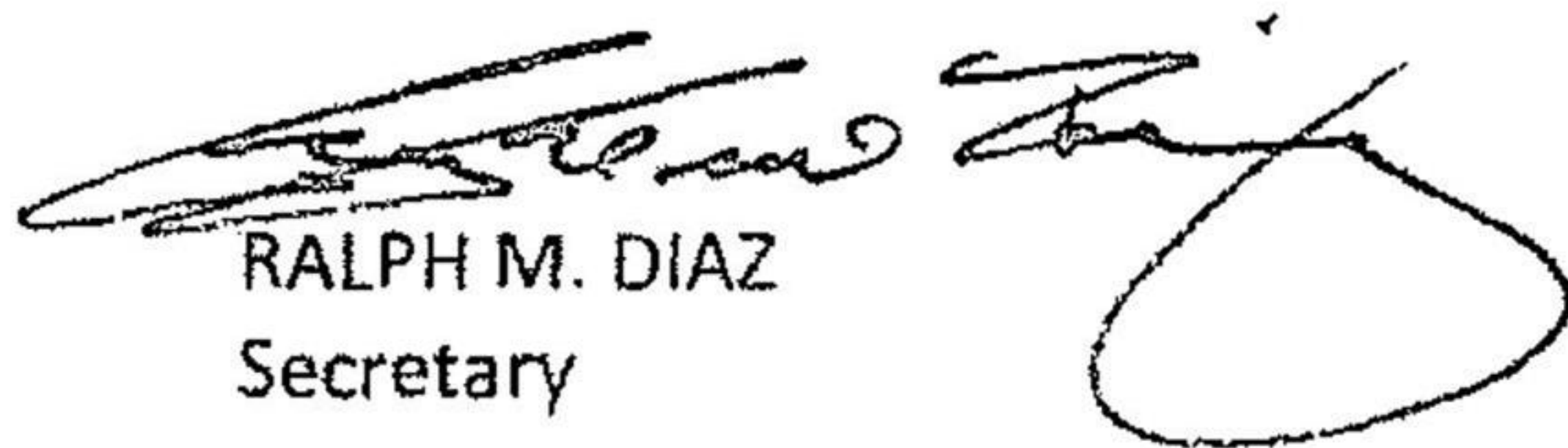
Inmate Figueroa has received two Rules Violation Reports since being received by CDCR on March 29, 2002, however, he has remained disciplinary free since June of 2003. Inmate Figueroa is currently unassigned based on his Out to Court status since September 5, 2018. Inmate Figueroa participates in Spanish, Narcotics Anonymous, Alcoholics Anonymous, and Criminal Gangmembers Anonymous. Inmate Figueroa was acknowledged for maintaining a high standard ethically and is a model of patience and compassion and serves as a significant role model to other prisoners. Inmate Figueroa was 16-years old at the time of the offense and his actions leading to the commitment offense may have

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been influenced by some causative factors, such as gang involvement, and he has taken advantage of Self-Help Programs available to him to help address these issues.

Having reviewed the enclosed documentation it appears that inmate Figueroa's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office